

Line 7

Case Name: *Schechinah Pritchard v. Starbucks Corporation, et al.*

Case No.: 25CV474626

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Starbucks Corporation (“Starbucks”) moves under Code of Civil Procedure Sections 435 and 436 to strike the following allegations from Plaintiff’s Complaint against Starbucks:

- Plaintiff’s Request for Punitive Damages (Complaint ¶¶ 37-40, 51-53, Prayer for Relief ¶ D).

Notice of Motion (the “Motion”) at 1:26-2:2 (filed: Dec. 9, 2025).

The Motion is made on the grounds that the language sought to be stricken is “irrelevant, false, or improper” and/or is “not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court” within the meaning of Code of Civil Procedure Section 436, and on the grounds that Plaintiff has not stated fact sufficient to support an award of punitive damages as set forth in Civil Code Section 3294(b), which requires specific facts showing how Starbucks’ officers, directors or managing agents authorized or ratified the conduct of its employees or agents or had advance knowledge of an unfitness of an employee and employed them with a conscious disregard of the rights and safety of others. Motion at 2:3-11.

The Motion came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

In her Complaint filed on September 9, 2025, Plaintiff alleges that on July 27, 2024, she sustained injuries after an employee of Defendant served her coffee through Defendant’s drive-thru window. (Complaint, ¶ 23.) While Defendant’s employee was handing Plaintiff her beverage, the lid dislodged and spilled dangerously hot coffee onto Plaintiff’s lap. (*Ibid.*) Plaintiff further alleges that Defendant’s Safety and Security Manual warned that skin burns at 140 degrees Fahrenheit, yet Defendant’s internal policy was to serve hot coffee to customers at a temperature at or near 190 degrees Fahrenheit. (Complaint, ¶ 22.) Additionally, Plaintiff alleges that Defendant “had been receiving at least 80 complaints per month from customers who reported lid failures, lids popping off, lid leaks, burn injuries, and/or other incidents involving spill exposures.” (Complaint, ¶ 21.)

Plaintiff alleges causes of action for negligence and product liability. On December 9, 2025, Defendant moved to strike Plaintiff's request for punitive damages in paragraphs 37-40 and 51-43 of Plaintiff's Complaint. (Motion, p. 2:3-5.) Plaintiff has opposed the Motion.

Analysis of the Motion to Strike

I. Legal Standard on Motion to Strike

A court may strike out any irrelevant, false, or improper matter asserted in a pleading. (Code Civ. Proc., § 436, subd. (a).) A court may also strike out all or any part of a pleading not drawn or filed in conformity with the laws of the State of California. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).) In ruling on a motion to strike, the court reads the targeted pleading as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (See *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63 [citing *Clauson v. Super. Ct.* (1998) 67 Cal.App.4th 1253, 1255].) The court's decision to strike the petition pursuant to section 436 is within the broad discretion of the court. (See Code Civ. Proc., § 436 ["The court may . . . strike"].)

II. Motion to Strike Punitive Damages

At the outset, having considered Defendant's accompanying Request for Judicial Notice of Plaintiff's Complaint, the Court GRANTS Defendant's Request for Judicial Notice of the existence of Plaintiff's Complaint. (Evid. Code, § 452, subd. (d).)

Now Defendant moves to strike Plaintiff's request for punitive damages in the Complaint on the grounds that Plaintiff has not stated facts sufficient to show how Defendant's officers, directors or managing agents authorized or ratified the conduct of its employees or agents or had advance knowledge of an unfitness of an employee and employed them with a conscious disregard of the rights and safety of others. (Motion to Strike, p. 2:13-18.)

Civil Code section 3294 subdivision (b) states that an employer cannot be liable for punitive damages for the actions of an employee unless "the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice." (Civ. Code, § 3294, subd. (b).) "With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (*Ibid.*) "Corporate ratification in the punitive damages context requires actual knowledge of the conduct and its outrageous nature." (*College Hospital Inc. v. Superior Court* (1994) 8 Cal. 4th 704, 726.) Claims for punitive damages cannot rely on entirely conclusory allegations and must be supported by facts. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 168 [striking punitive damages request from a

complaint that failed to sufficiently allege corporate defendant's advance knowledge, authorization, or ratification].)

“While punitive damages may be recovered in a products liability case and in a negligence action, in order to justify an award of punitive damages on the basis of a conscious disregard of the safety of others, the plaintiff must establish that the defendant was aware of the *probable* dangerous consequences of its conduct and that it willfully and deliberately failed to avoid those consequences.” (*Hilliard v. A. H. Robins Co.* (1983) 148 Cal.App.3d 374, 395, internal citations omitted, emphasis in original.) Said another way, punitive damages may be awarded in a product liability action if it is shown that the defendant placed a product on the market in conscious disregard of the safety of consumers and others. (*Grimshaw v. Ford Motor Co.* (1981) 119 Cal.App.3d 757, 808; see also *Johnson v. Monsanto Co.* (2020) 52 Cal.App.5th 434, 456 [“[A] plaintiff must show more than negligence to recover punitive damages and instead must show that a defendant willfully and consciously ignored the dangers inherent in a product’s design.”].)

Here, Plaintiff alleges enough specific facts that Defendant knew that the temperature of its beverages and their product lids were causing burns and still chose to keep serving drinks that way. (Complaint, ¶ 19.). Specifically, Plaintiff alleges that Defendant’s Safety and Security Manual warned that skin burns at 140 degrees Fahrenheit, yet Defendant’s internal policy was to serve hot coffee to customers at a temperature at or near 190 degrees Fahrenheit. (Complaint, ¶ 22.) “‘Corporate policy’ is the general principles which guide a corporation, or rules intended to be followed consistently over time in corporate operations. A ‘managing agent’ is one with substantial authority over decisions that set these general principles and rules.” (*Cruz v. Homepage* (2000) 83 Cal.App.4th 160, 167-168.) Hence, Plaintiff has pleaded enough specific facts to support that an officer, director, or managing agent of the Defendant corporation was aware of probable dangerous consequences from serving drinks at a temperature above 140 degrees Fahrenheit but nevertheless instructed employees to serve drinks at or near 190 degrees Fahrenheit. (Complaint, ¶ 22.). Which in turn supports Plaintiff *pleading* punitive damages.

Additionally, Plaintiff alleges that Defendant “had been receiving at least 80 complaints per month from customers who reported lid failures, lids popping off, lid leaks, burn injuries, and/or other incidents involving spill exposures.” (Complaint, ¶ 21.) Plaintiff has thus alleged that Defendant had received complaints and consequently “was aware of the *probable* dangerous consequences” of continuing to serve very hot drinks with potentially faulty lids, and that it deliberately did not take action to avoid those consequences. (*Hilliard v. A. H. Robins Co.*, *supra*, 148 Cal.App.3d at p. 395; see also *Ehrhardt v. Brunswick* (1986) 186 Cal.App.3d 734, 741 [trial court did not err in refusing to submit the issue of punitive damages to the jury because defendant manufacturer was unaware of and never anticipated the failures responsible for plaintiff’s injury and there was no evidence that defendant knew of any problems and thereafter refused to redesign the system to eliminate the problems].)

Hence, Plaintiff has alleged that Defendant’s corporate policy per internal documents was to serve beverages at temperatures it knew could be dangerous and that

Defendant had received complaints about spill issues. Assuming, as the Court must for the purposes of resolving this Motion, all well-pleaded allegations in the Complaint to be true (*Turman v. Turning Point of Central California, Inc.*, *supra*, 191 Cal.App.4th at p. 63), Plaintiff has sufficiently pleaded that Defendant placed a product on the market in conscious disregard of the safety of consumers and others. (*Grimshaw v. Ford Motor Co.*, *supra*, 119 Cal.App.3d at p. 808.) While Defendant of course may strenuously dispute and challenge those allegations, they are well pleaded and they are enough to support a claim for punitive damages *at the pleading stage*.

Conclusion & Order

Accordingly, at this early stage of the proceedings, the Court **DENIES** Defendant's Motion to Strike punitive damages from the Complaint.

SO ORDERED.

Date: July 10, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 8

Case Name: *Wells Fargo Bank, N.A. v. Phat Tran*

Case No.: 25CV477490

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) moves under Code of Civil Procedure Sections 2033.010, 2033.020, 2033.250, 2033.280, and 2033.430 to deem the truth of all matters specified in the Requests for Admissions, Set One, served on December 4, 2025, to be admitted by Defendant Phat Tran (“Defendant”). Notice of Motion (the “Motion”) at 1:21-24 (filed: Feb. 5, 2026).

The Motion came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served the Requests for Admissions, Set One, on Defendant on December 4, 2025. Declaration of attorney Pearse F. Early In Support of Motion (“Early Decl.”) at ¶ 1 & Exhibit A thereto.

Defendant never responded to the Requests for Admissions, Set One, despite his obligation to respond under Code of Civil Procedure Section 2033.240. Early Decl. at ¶ 2.

Because Defendant failed to respond, Plaintiff now moves for an Order under Code of Civil Procedure Section 2033.280 deeming admitted by Defendant the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One. C.C.P. 2033.280 (b). Plaintiff’s Memorandum of Points & Authorities in Support of Motion at 1:23-2:7.

The Motion is well supported by the law, well supported by the facts set forth in the Early Declaration, and reasonable in all respects.

Moreover, Defendant has failed to oppose the Motion, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).)

Accordingly, the Court **GRANTS** the Motion in all respects. Specifically, it is hereby **ORDERED that the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One, served on Defendant on December 4, 2025, is deemed admitted by Defendant Phat Tran.**